

CERTIFICATE OF ENTRY

OWNER ENTRY

Class 1 – Protection and Indemnity

Negotiator Omni Ltd	Certificate No. 538216 Date of Issue 16 February 2024
Member Jupiter Union Shipping Ltd (Registered Owner) Joint Member MCE KARGO (Managers)	
Name and Principal Place of Business Jupiter Union Shipping Ltd 80 Broad Street Monravia Liberia	

Vessel	JUPITER			
IMO Number	Gross Tons	Built	Flag	Port of Registry
8867210	4,962	1992	COK	Avatiu
Period of Entry	Noon GMT 20 th February 2024		to	Noon GMT 20 th February 2025

The West of England Ship Owners Mutual Insurance Association (Luxembourg)

R.C.S. Luxembourg B8963, 31 Grand Rue, L-1661 Luxembourg, G.D. Luxembourg

Managers West of England Insurance Services (Luxembourg) S.A.

R.C.S. Luxembourg B104783, 31 Grand Rue, L-1661 Luxembourg, G.D. Luxembourg

UK Branch One Creechurch Place, Creechurch Lane, London EC3A 5AF

Tel +44 20 7716 6000 **Email** mail@westpandi.com **www.westpandi.com**

This Certificate of Entry is evidence only of the contract of Indemnity Insurance between the above named Member(s) and the Association and shall not be construed as evidence of any undertaking, financial or otherwise, on the part of the Association to any other party. If a Member tenders this Certificate as evidence of insurance under any applicable law relating to financial responsibility, or otherwise shows or offers it to any other party as evidence of insurance, such use of this Certificate by the Member is not to be taken as any indication that the Association thereby consents to act as guarantor or to be sued directly in any jurisdiction whatsoever. The Association does not so consent.

The insurance provided by the Association for the vessel is governed by the Association's Rules, Bye-Laws and Constitution for the time being in force and by the Special Terms set out below. Such Rules, Bye-Laws and Constitution are incorporated as if fully set forth in this Certificate and together with such Special Terms constitute both the contract of indemnity insurance evidenced by this Certificate between the Association and each Member and each Joint Member named herein and the cover provided by that contract to each Co-Assured named herein. Each Member, Joint Member and Co-Assured is bound by and deemed to know the Rules, Bye-Laws and Constitution. Members, Joint Members and Co-Assureds should ensure they read the Rules, Bye-Laws and Constitution, copies of which are available from the Association. Members, Joint Members and Co-Assureds not having copies of these documents should ask the Association's Managers to provide them.

This insurance insures the Member in accordance with Rule 3 in respect of the liabilities, costs and expenses set out in Rule 2 upon terms that the Member shall pay a fixed Call instead of a Mutual Call, consisting of a single fixed element, and that the Member shall not be liable to pay a Supplementary Call, Overspill Call, Release, or Contribution in respect of a Solvency Margin and/or Guarantee Fund. This insurance is otherwise subject to the Rules, Bye-laws and Constitution of the Association.

All the terms of the Rules, Bye-laws and Constitution are important, but particular attention is drawn to:-

- **Rule 43** which sets out the payment obligations of the Members in relation to Calls.
- **Rules 1 and 57** which establish that any difference or dispute between a Member and the Association, or other matter relating to the Rules and all contract of insurance afforded by the Association or otherwise shall be governed by English law and procedure in accordance with Rules 1 and 57. As set out therein, no Member may bring or maintain any action, suit or other legal proceedings against the Association in connection with any difference or dispute unless he has first obtained an Arbitration Award in accordance with Rule 57, or the Association has exercised its option for such difference or dispute to be determined in Court in accordance with Rule 57.
- **Rule 3 (D)** which sets out the terms on which the Association shall discharge and pay on the Member's behalf certain liabilities under the 2006 Maritime Labour Convention as amended (MLC 2006) or domestic legislation by a State Party implementing MLC 2006.
- **Rule 8** which set out the limits of the Association's liability generally.
- **Rule 10** which provides that the insurance is that of indemnity only. The Member or Joint Member or Co-Assured has no right to recover funds from the Association for insured claims unless and until the Member, Joint Member or Co-Assured has first paid the same.
- **Rule 18 (Double Insurance) and Rule 2 Section 11 proviso (b) (Pollution)** which contain restrictions on cover for liabilities, costs and expenses insured by or recoverable from other insurers.
- **Rule 19 and 19(A)** which provide that cover may not be available for certain kinds of trade or other activity, including but not limited to those which expose the Association to the risk of sanctions.
- **Rule 21** which provides that, although the Rules are subject to the Insurance Act 2015, the Association has exercised its right to contract out of a number of Sections in the Act, including Section 13A which introduced damages for the late payment of a claim.
- **Rule 24 and Rule 25** which include the requirement for prompt notification of every casualty, event or matter which is liable to give rise to a claim on the Association, and the conditions under which a claim on the Association may be Time Barred.
- **Rules 36 and 58** which define Members, Joint Members and Co-Assureds. **Rule 42** which provides that the obligations of a Member are cumulative throughout the period of membership and that obligations of a Member may continue after membership has ceased.

The Association is subject to the laws and regulations of the Grand Duchy of Luxembourg and is therefore subject to a duty of professional secrecy in its activities carried out from the Grand Duchy of Luxembourg pursuant to Article 300 of the law of 7 December 2015 on the insurance sector, as amended.

The Association may, in order to fulfil its obligations and to provide a suitably high level of service, need to share certain information regarding the Members with its service company regulated by the Luxembourg Commissariat aux Assurances, West of England Insurance Services (Luxembourg) S.A., and with that company's branches in the UK, Hong Kong and Singapore or other entities within the group situated in the U.S.A., in Luxembourg and in Greece (together the "Service Providers"). Certain services are indeed outsourced by the Association to the Service Providers in the areas of underwriting, claims management and back-office services such as IT, finance, compliance, internal audit and payment.

Information that may be shared by the Association with the Service Providers includes (without limitation): the Member's name, registered office, date of incorporation and description of activities; personal data of the Member's staff (e.g. first name, surname, date and place of birth, passport or ID card number and contact details; the beneficial owner(s); the authorised representative; and general information relating to the Members' assets and funds that have been provided by the Member to the Association (the "Data"). Data is shared only on a strict need-to-know and least privilege basis with a limited number of relevant specialists within the Service Providers. Please note that the aforementioned list of Service Providers may be updated from time to time. The Member will be duly informed in writing, in accordance with the means of communication agreed upon between the Association and the Members with respect to any changes thereto.

The Member hereby expressly authorises, and confirms its consent to, the sharing, transmission and disclosure of the Data with or to the Service Providers by the Association and its directors, officers, employees and agents. The Member hereby acknowledges that the transfer of the Data to the Service Providers under the present consent/instruction does not entail any breach by the Association of its professional secrecy obligation.

In addition, the Association and the Service Providers must comply at all times with the local legal and regulatory framework of the jurisdictions in which they operate. Certain jurisdictions may require Data to be shared. In such cases, Data is shared by the Association and/or the Service Providers only on a strict need-to-know and least privilege basis with a judicial or regulatory public authority which is legally authorised to request such disclosure under the local legal and regulatory framework.

The Member hereby expressly authorises, and confirms its consent to the sharing, transmission and disclosure of the Data by the Association and the Services Providers to local judicial or regulatory public authorities, as exposed above. The Member hereby acknowledges that the transfer of the Data to local judicial or regulatory public authorities under the present consent/instruction does not entail any breach by the Association of its professional secrecy obligation.

The Member irrevocably waives any claim it might have under any applicable law against the Association, its directors, officers, employees and agents for disclosing Data to the Service Providers within the context of this instruction. The present consent/instruction shall remain in full force and effect as long as the Member maintains a relationship with the Association. Even after the termination of the relationship between the Member and the Association, Data which fell within the scope of or was transferred by virtue of this consent/instruction prior to such termination, will remain subject to this consent/instruction.

The Member shall ensure that they (and/or their nominated representative(s)) are entitled under the General Data Protection Regulation (GDPR) (EU) 2016/679 ("GDPR") to transfer relevant personal data to the Association to facilitate lawful processing of personal data. The Service Providers shall treat personal data provided by the Member in accordance with the GDPR and in accordance with the Association's Privacy policy available at <https://www.westpandi.com/privacy-policy/>

The terms and conditions of the insurance afforded by the Association in respect of the aforesaid vessel are upon and in accordance with this Certificate and the Rules, Bye-laws and the Constitution of the Association for the time being in force except to the extent that the said Rules are modified by the Special Terms set out below:-

Special Terms

4/4ths Collision Deductible

The deductible in respect of liabilities, costs and expenses referred to in Rule 2 Section 9 (A) is US\$ 20,000 each incident.

Loss/Damage To Property (Fixed Floating Objects) Deductible

The deductible in respect of liabilities, costs and expenses referred to in Rule 2 Section 10 is US\$ 20,000 each incident.

Pollution Deductible - Area/Region

The deductible in respect of liabilities, costs and expenses referred to in Rule 2 Section 11 whilst in Turkish Waters is US\$ 20,000 each incident.

Pollution Deductible

The deductible in respect of liabilities, costs and expenses referred to in Rule 2 Section 11 is US\$ 10,000 each incident.

Cargo Deductible - All Other Cargo

The deductible for liabilities, costs and expenses in respect of the total of all other cargo claims under Rule 2 Sections 16 and 17 is US\$ 10,000 each single voyage.

Cargo Deductible - North African Ports

The deductible in respect of liabilities costs and expenses referred to in Rule 2 Section 16 (Cargo) in respect of calls to North African ports is US\$ 20,000 each visit each port.

Crew Deductible

The deductible for liabilities, costs and expenses in respect of claims by or in respect of crew under Rule 2 Sections 1, 3, 4, 5, 6, and 8, is US\$ 9,500 each incident.

Deductibles Do Not Apply To Costs/Expenses

Deductibles set out in this certificate, whether as a Special Term or otherwise, shall not apply to costs and expenses incurred under Rule 2, including but not limited to, Rule 2 Section 24.

Other Claims Deductible

The deductible for liabilities, costs and expenses in respect of all other claims is US\$ 7,500 each incident.

4/4th RDC Collision Cover

In Rule 2, Section 9 (A), the insured proportion of the liabilities arising out of a collision is agreed to be four fourths.

Crew Exclusion - State Social Scheme

There is no cover for liabilities, costs and expenses referred to in Rule 2 in respect of the Master and all members of the crew insofar as such costs, liabilities and expenses are capable of being covered under any applicable state social scheme.

Crew Exclusion - US Crew

There is no cover for liabilities, costs and expenses, arising under Rule 2 in respect of U.S. National crew.

Crew Exclusion - Local Social Security Schemes

There is no cover for liabilities, costs and expenses, in respect of crew, in so far as covered by local/State social security schemes or additional insurance arranged by the Member or his agents.

Endorsement Excluding a Communicable Disease Following a Public Health Emergency of International Concern

There is no cover under the Rules for liabilities, costs & expenses arising as follows:

1. In the event that the World Health Organization ('WHO') has determined an outbreak of a Communicable Disease to be a Public Health Emergency of International Concern (a 'Declared Communicable Disease'), no coverage will be provided under this (re)insurance for any loss, damage, liability, cost or expense directly arising from any transmission or alleged transmission of the Declared Communicable Disease.

2. The exclusion in paragraph 1 of this endorsement will not apply to any liability of the insured otherwise covered by this insurance where the liability directly arises from an identified instance of a transmission of a Declared Communicable Disease and where the insured proves that identified instance of a transmission took place before the date of determination by the WHO of the Declared Communicable Disease.

3. However even if the requirements of paragraph 2 of this endorsement are met, no coverage will be provided under this insurance for any:

A. liability, cost or expense to identify, clean up, detoxify, remove, monitor, or test for the Declared Communicable Disease whether the measures are preventative or remedial;

B. liability for or loss, cost or expense arising out of any loss of revenue, loss of hire, business interruption, loss of market, delay or any indirect financial loss, howsoever described, as a result of the Declared Communicable Disease;
C. loss, damage, liability, cost or expense caused by or arising out of fear of or the threat of the Declared Communicable Disease.

4. As used in this endorsement, Communicable Disease means any disease, known or unknown, which can be transmitted by means of any substance or agent from any organism to another organism where:

A. the substance or agent includes but is not limited to a virus, bacterium, parasite or other organism or any variation or mutation of any of the foregoing, whether deemed living or not, and

B. the method of transmission, whether direct or indirect, includes but is not limited to human touch or contact, airborne transmission, bodily fluid transmission, transmission to or from or via any solid object or surface or liquid or gas, and

C. the disease, substance or agent may, acting alone or in conjunction with other comorbidities, conditions, genetic susceptibilities, or with the human immune system, cause death, illness or bodily harm or temporarily or permanently impair human physical or mental health or adversely affect the value of or safe use of property of any kind.

5. This endorsement shall not extend this insurance to cover any liability which would not have been covered under this insurance had this endorsement not been attached.

All other terms, conditions and limitations of this insurance remain the same.

Restricted Cover under Rule 14 in Respect of War Risk Liabilities Arising in Russia, Ukraine, Belarus and Moldova

There is no cover under Rule 14 for any loss, damage, liability, cost or expense:

(a) caused by or arising from or in connection with any Russia-Ukraine conflict and/or any expansion of such conflict; or

(b) in any area or territory or territorial waters where Russian armed forces, Russian-backed forces, and/or Russian authorities, are engaged in conflict within the territories (including territorial waters) of the Russian Federation, Belarus, Ukraine and any disputed regions of Ukraine, the Crimean Peninsula and the Republic of Moldova.

(c) arising from capture, seizure, arrest, detainment, confiscation, nationalisation, expropriation, deprivation or requisition for title or use, or the restraint of movement of vessels and cargo in the territories (including territorial waters) of the Russian Federation, Belarus, Ukraine and any disputed regions of Ukraine, the Crimean Peninsula and the Republic of Moldova.

Omnibus Rule Exclusion

There is no cover under Rule 5 Omnibus Rule.

Coronavirus Exclusion

This clause shall be paramount and shall override anything contained in this insurance inconsistent therewith.

This insurance excludes coverage for:

1) any loss, damage, liability, cost, or expense directly arising from the transmission or alleged transmission of:

a) Coronavirus disease (COVID-19);

b) Severe Acute Respiratory Syndrome Coronavirus 2 (SARS-CoV-2); or

c) any mutation or variation of SARS-CoV-2;

or from any fear or threat of a), b) or c) above;

2) any liability, cost or expense to identify, clean up, detoxify, remove, monitor, or test for a), b) or c) above;

3) any liability for or loss, cost or expense arising out of any loss of revenue, loss of hire, business interruption, loss of market, delay or any indirect financial loss, howsoever described, as a result of any of a), b) or c) above or the fear or the threat thereof.

All other terms, conditions and limitations of the insurance remain the same.

LMA5395
09 April 2020

Marine Cyber Endorsement

1. Subject only to paragraph 3 below, in no case shall this insurance cover loss, damage, liability or expense directly or indirectly caused by or contributed to by or arising from the use or operation, as a means for inflicting harm, of any

computer, computer system, computer software programme, malicious code, computer virus, computer process or any other electronic system.

2. Subject to the conditions, limitations and exclusions of the policy to which this clause attaches, the indemnity otherwise recoverable hereunder shall not be prejudiced by the use or operation of any computer, computer system, computer software programme, computer process or any other electronic system, if such use or operation is not as a means for inflicting harm.

3. Where this clause is endorsed on policies covering risks of war, civil war, revolution, rebellion, insurrection, or civil strife arising therefrom, or any hostile act by or against a belligerent power, or terrorism or any person acting from a political motive, paragraph 1 shall not operate to exclude losses (which would otherwise be covered) arising from the use of any computer, computer system or computer software programme or any other electronic system in the launch and/or guidance system and/or firing mechanism of any weapon or missile.

LMA5403
11 November 2019

Biochemical Risks

There is no cover under Rule 14 Paragraph 3 (Supplemental Cover 2004 Biochemical Risks).

Fixed And Floating Objects (FFO) Cover

There is cover for liabilities, costs and expenses in respect of Fixed and Floating Objects (FFO) in accordance with Rule 2 Section 10.

Limit Of Liability

Notwithstanding the provisions of Rule 7 the Association's liability for all liabilities, losses, costs and expenses arising out of any one incident, including pollution under Rule 2 Section 11, shall not in any case exceed US\$ 500,000,000 in the aggregate.

Laid-Up Return Exclusion

No laid-up returns to be given by the Association.

Premium Tax and Other Excise Taxes

The Member shall pay on demand to the Association or its order the amount of any premium tax or other excise tax or similar charge or fee for which the Association determines in its discretion that it or the Member has or may become liable and shall indemnify and hold harmless the Association in respect of any loss, damage, liability, cost or expense which the Association may incur in respect of such premium tax or other excise tax, charge or fee.

No Premium Returns - Total Loss

The premium is payable in full for the period on risk and there is no return in premium where the vessel is considered a total loss or is missing for 10 days as defined in Rule 38 (2) paragraphs (v) and (vi).

Fleet Clause

For the purposes of Rule 31 the vessel belongs to the MCE Kargo fleet.

Condition Survey Clause

It is a condition of cover that the entered vessel must be made available for a condition survey within 30 days of attachment (the "Agreed Survey Period"). Furthermore, the vessel must be made available in a cargo free state and at a safe place or port where it is reasonably possible for a survey to be undertaken. Unless otherwise agreed in writing by the Managers of the Association ("Managers") the survey fee will be for the Member's account and will be paid in the first instance by the Managers and then reimbursed by the Member.

In accordance with Rule 20B (3) in the light of such survey and any recommendations made by the surveyor or the Managers as to repairs or other action to be taken, the Managers in their discretion may terminate the entry forthwith or amend or vary the terms of entry or impose conditions in the terms of entry in such form as they think fit.

Should the entered vessel not be made available for a condition survey within the Agreed Survey Period in accordance with the first paragraph of this clause, then there is no cover for any claim whatsoever which is deemed by the Managers to have arisen and or resulted from a default, fault or problem with the vessel and or crew that would have been discovered by a surveyor had the condition survey taken place within the Agreed Survey Period, unless otherwise agreed by the Managers. Should it later be agreed by the Managers to extend the survey period beyond the Agreed Survey Period then it will still be deemed for the purposes of this third paragraph that the entered vessel was not made available for a condition survey within the Agreed Survey Period, unless otherwise agreed by the Managers.

Certificate No: 538216
Date of Issue: 16 February 2024

Trading Area Warranty

Warranted trading Mediterranean Sea, Black Sea, Aegean Sea and Sea of Azov

Issued for and on behalf of:

**THE WEST OF ENGLAND SHIP OWNERS MUTUAL INSURANCE ASSOCIATION
(LUXEMBOURG)**

by

West of England Insurance Services (Luxembourg) S.A.
(As Managers)

A handwritten signature in blue ink, appearing to read 'Simon Parrott', with a stylized flourish at the end.

Simon Parrott
Underwriting Director